

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

04/22/2026

Clerk of the Court

BY: SANDRA SCHIRO

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

DECLARATION OF

v.

**TYLER J. O'CONNELL IN SUPPORT
OF MOTION TO STRIKE PLEADING**

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

(C.C.P. § 435 AND C.C.P. § 436)

Defendants.

DATE: May 19, 2026

TIME: 09:00 AM

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

1 I, Tyler J. O'Connell, declare:

2 1. I am an attorney licensed to practice law before all courts in the State of California
3 and I am an associate at the law firm of Porter Scott, counsel of record for Defendant CSAA
4 INSURANCE EXCHANGE ("Defendant"). This declaration is submitted in support of Defendant's
5 Motion to Strike Plaintiff's First Amended Complaint ("FAC") filed on February 25, 2026. The
6 following facts are within my personal knowledge and, if called as a witness herein, I can and will
7 competently testify thereto.

8 2. I was unable to schedule an opportunity to meet and confer with Plaintiff, prior to
9 the original deadline to file a responsive pleading. Prior to this date, I was in the midst of drafting a
10 lengthy meet and confer correspondence, addressing Plaintiff's cause of action contained within
11 Plaintiff's original Complaint.

12 3. Then, on February 25, 2026, Plaintiff filed a First Amended Complaint ("FAC"),
13 therefore resetting the responsive pleading deadline, and revising the allegations in that pleading.

14 4. On March 4, 2026, I wrote a meet and confer letter to Plaintiff requesting mutual
15 consent to electronic service in this matter, including a request that Plaintiff prepare and file a
16 Consent to Electronic Service with the Court. Plaintiff agreed in principle, by preparing and filing
17 a Consent to Electronic Service; however, Plaintiff had earlier (late-February 2026) filed an
18 Amended Complaint. Plaintiff then continued making service attempts for that First Amended
19 Complaint upon Defendant CSAA, directly, by serving upon its agent for service of process, instead
20 of serving on my office, as agreed.

21 5. On March 13, 2026, Plaintiff caused to be served upon CSAA, directly on its agent
22 for service of process, a copy of his First Amended Complaint. This service directly upon CSAA
23 was contrary to the requirement in Code Civ. Proc. § 1015, and contrary to the parties' agreement.
24 Hence that service is defective.

25 6. Thereafter, I entered into an agreement with Plaintiff, in writing, stipulating to
26 Defendant's responsive pleading deadline in this case to be set on April 22, 2026.

27 ///

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1 7. On April 6, 2026, I provided a lengthy written correspondence to Plaintiff identifying
2 the objections to be raised on demurrer/motion to strike by Defendant to Plaintiff's First Amended
3 Complaint—along with citations to supporting legal authorities.

4 8. Also on April 6, 2026, I offered to Plaintiff, via email, to conduct a meet and confer
5 conference call with Plaintiff to address the FAC, the cause of action therein, and my intention of
6 pursuing a demurrer/motion to strike to that pleading; absent an agreement from Plaintiff to
7 withdraw that pleading.

8 9. On April 8, 2026, I conduct a lengthy meet and confer conference call with Plaintiff
9 discussing all those issues identified in my April 6, 2026 letter.

10 10. On that April 8, 2026 phone call, it became clear that Plaintiff would not withdraw
11 the pleadings, nor would (or, indeed, could) he amend the First Amended Complaint in a manner so
12 as to avoid the need for Defendant to file a demurrer/motion to strike to the pleadings. Furthermore,
13 Plaintiff sent a incredibly lengthy correspondence after this phone call—wherein Plaintiff admitted
14 his correspondences are drafted with Artificial Intelligence—doubling down on all the same theories
15 as contained in the First Amended Complaint. To date, no agreement has been reached that would
16 resolve the objections to be raised in Defendant's Demurrer and Motion to Strike.

17 11. I have personally reviewed the case docket in Plaintiff's underlying personal injury
18 lawsuit, entitled *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-
19 594102.

20 12. Attached hereto as **Exhibit A** is a true and correct copy of *Plaintiff's First Amended*
21 *Complaint* in the instant action (*see also* concurrently filed Request for Judicial Notice ¶ 1.)

22 13. Attached hereto as **Exhibit B** is a true and correct copy of *Register of Actions*, in
23 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102 (*see also*
24 concurrently filed Request for Judicial Notice ¶ 2).

25 14. Attached hereto as **Exhibit C** is a true and correct copy of *Defendant's Notice of*
26 *Entry of Judgment*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No.
27 CGC-21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 3).

28 ///

1 I declare under the penalty of perjury under the laws of the State of California that the
2 foregoing is true and correct, and that this declaration was executed on April 22, 2026, at
3 Sacramento, California.

4
5 *Tyler J. O'Connell*
6 Tyler J. O'Connell
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EXHIBIT A

Franciscus Dylan Rosario,
7624 Melody Dr.
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

FILED
Superior Court of California
County of San Francisco

FEB 25 2026

CLERK OF THE COURT
BY: Alexandra Feale
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to CGC-21-594102)

Case Management Conference: May 27,
2026 at 10:30 a.m., Department 610, 400
McAllister Street, San Francisco, CA
94102-3680

**AMENDED COMPLAINT FOR
DAMAGES AND INJUNCTIVE RELIEF**

1. FRAUD AND DECEIT (Civ. Code §§
1709-1710)
2. VIOLATION OF BUS. & PROF. CODE §
17200 (UCL)

DEMAND FOR JURY TRIAL

INTRODUCTION AND LIMITED THEORY OF THE CASE

1. Plaintiff brings this action on a narrow, document-anchored theory: a pre-litigation business misrepresentation by Defendant CSAA Insurance Exchange in a liability-claim denial letter, **made**

1 **knowingly or recklessly and used as institutional leverage to discourage or curtail an injured**
2 **claimant's pursuit of a valid claim (a deny-delay-defend claim-suppression tactic).**

3 2. The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated,
4 in substance, that it had "concluded" its investigation and "concluded" its insured was not liable
5 (the "Denial Letter"). A true and correct copy of the Denial Letter, on CSAA letterhead regarding
6 Claim No. 1004-09-1054 and signed by Sarah Rash, Claims Representative, is attached hereto as
7 Exhibit A and incorporated by this reference.

8 3. Plaintiff alleges that, in context and ordinary meaning, the Denial Letter represented a com-
9 pleted investigative fact, namely that CSAA had already performed and completed an investiga-
10 tion sufficient to justify a categorical liability denial as of the letter date. A reasonable claimant
11 would understand "concluded our investigation" to mean CSAA obtained and reviewed the ba-
12 sic objective incident records it would normally collect to evaluate liability (including 911/CAD
13 and police-generated incident records), before issuing a categorical denial. **The representation of**
14 **investigative finality was intended and reasonably understood to signal futility—i.e., that fur-**
15 **ther pursuit would be pointless unless Plaintiff undertook burdens CSAA represented had**
16 **already been completed.**

17 4. Plaintiff alleges that the Denial Letter representation of a "concluded" investigation was mate-
18 rially false when made because, at that time, CSAA had not obtained or reviewed **basic, readily**
19 **obtainable, and foundational objective liability evidence** for the incident, including:

- 20 • 911 audio;
- 21 • body-worn camera footage; and
- 22 • computer aided dispatch records.

23 As alleged below, these categories of foundational objective evidence were generated contempora-
24 neously with the February 4, 2021 incident and were identifiable and obtainable during the period
25 CSAA represented its investigation had already "concluded."

26 5. Plaintiff further alleges that the falsity of the Denial Letter is corroborated by CSAA's later
27 claim activity reflecting post-denial pursuits of the same foundational objective liability evidence.

28 6. Plaintiff alleges reliance and resulting injury in connected categories that include (a) discrete

1 out-of-pocket procurement and investigation expenses incurred to obtain foundational objective
2 evidence that CSAA represented had already been investigated; (b) fees and costs incurred in
3 related third-party litigation that Plaintiff alleges was reasonably and proximately forced by the
4 Denial Letter misrepresentation, **because the misrepresentation shifted the burden of founda-**
5 **tional evidence collection and authentication onto Plaintiff as the price of continuing,** sought
6 here as damages under the tort-of-another doctrine described in *Prentice v. North Am. Title Guar.*
7 *Corp.* (1963) 59 Cal.2d 618; (c) incremental medical, therapeutic, and health-related expenses
8 incurred as a result of the fraud-induced delay and forced proof burden described herein; and (d)
9 incremental non-economic harm, including physical exacerbation, pain and suffering, emotional
10 distress, humiliation, and loss of enjoyment of life, proximately caused by the fraud-induced delay
11 and burdens created by CSAA's misrepresentation.

12 7. **Plaintiff pleads attorney-fee damages** with segregation and proof discipline, and does not seek
13 to recover unrecoverable or unsegregated fees. Plaintiff seeks third-party litigation fees and costs,
14 if any, only to the extent they are proximately caused by CSAA's tortious conduct and are proven
15 with competent evidence, segregation, and reasonableness.

16 8. **Plaintiff further alleges that he incurred additional economic loss in the form of lost earnings,**
17 **diminished earning capacity, and lost productive time attributable to the incremental procurement,**
18 **review, authentication, and litigation-support burdens created by CSAA's Denial Letter misrepre-**
19 **sentation.** Plaintiff pleads these categories separately from attorney-fee damages and will prove
20 them with competent, non-speculative evidence, including documentation of time expended, eco-
21 nomic value of that time, and the causal connection to the fraud-induced burdens alleged herein.

22 **TIMELINESS AND DELAYED DISCOVERY (CCP § 338(d))**

23 8A. Plaintiff brings this action within the applicable limitations periods, including Code of Civil
24 Procedure section 338(d), because Plaintiff did not discover, and could not reasonably have dis-
25 covered, the facts constituting CSAA's fraud until January 2025.

26 8B. From February 25, 2021 through the litigation period, CSAA's written Denial Letter and
27 continuing denial position represented investigative finality and did not disclose that CSAA had
28 failed to obtain and review basic, readily obtainable, foundational objective incident records be-

1 fore declaring its investigation “concluded.”

2 8C. Plaintiff first discovered facts revealing the falsity and/or reckless nature of the “investigation
3 concluded” representation in January 2025, on the eve of trial in the related action, when defense
4 counsel asserted in pretrial filings and proceedings that the 911 recording and related incident
5 records had not been produced in discovery, were of “unknown provenance,” and were being pre-
6 sented at the “eleventh hour”—thereby exposing that the foundational incident records had not
7 been collected and produced through the insurer/defense-side pipeline that would ordinarily exist
8 if CSAA had truly completed a reasonable pre-denial investigation as represented.

9 8D. Plaintiff acted diligently upon discovery by promptly raising the issue in pretrial proceedings,
10 including at the February 18, 2025 hearing, and by investigating the procurement history and chain
11 of custody necessary to plead this action with specificity.

12 8E. Accordingly, the limitations period began to run no earlier than January 2025, and this action
13 is timely.

14 **JURISDICTION AND VENUE**

15 9. This Court has jurisdiction over this action because the causes of action asserted herein arise
16 from conduct occurring in California and involve Defendants who do business in California.

17 10. Venue is proper in San Francisco County because Plaintiff resides in San Francisco County
18 and the events and omissions giving rise to the claims occurred, in substantial part, in this County.

19 **PARTIES**

20 11. Plaintiff FRANCISCUS DYLAN ROSARIO is an individual residing in San Francisco, Cali-
21 fornia.

22 12. Defendant CSAA INSURANCE EXCHANGE (“CSAA”) is a California reciprocal insurer
23 and, upon information and belief, does business in California, including in San Francisco County.

24 13. Plaintiff is ignorant of the true names and capacities of Defendants sued herein as DOES
25 1 through 50, inclusive, and therefore sues these Defendants by such fictitious names. Plaintiff
26 will amend this Complaint to allege their true names and capacities when ascertained. Plaintiff is
27 informed and believes, and based thereon alleges, that each Doe Defendant is legally responsible
28 in some manner for the occurrences alleged and that Plaintiff’s damages were proximately caused

1 by their conduct.

2 **FACTUAL ALLEGATIONS**

3 **THE COLLISION AND CLAIM SUBMISSION**

4 14. On or about February 4, 2021, Plaintiff was struck by a vehicle driven by CSAA's insured in
5 connection with the related matter CGC-21-594102.

6 15. Plaintiff made a bodily injury liability claim to CSAA as the liability insurer for its insured.

7 **THE FEBRUARY 25, 2021 DENIAL LETTER**

8 16. On February 25, 2021, CSAA mailed Plaintiff the Denial Letter (Exhibit A), stating, in sub-
9 stance:

10 "We have concluded our investigation... [and] concluded that our insured is not
11 liable."

12 17. Plaintiff alleges the Denial Letter represented that CSAA had already completed its investi-
13 gation as of February 25, 2021, and had reached its liability conclusion based on that completed
14 investigation.

15 18. Plaintiff alleges the Denial Letter statement that the investigation was "concluded" was ma-
16 terially false when made because, at the time of the Denial Letter, CSAA had not obtained and
17 reviewed foundational objective liability evidence, including:

- 18 • the 911 call audio;
- 19 • body-worn camera footage; and
- 20 • computer aided dispatch records.

21 Plaintiff alleges that the timing and obtainability facts supporting this falsity are set forth in para-
22 graphs 19 through 21, below.

23 **CHRONOLOGY OF PRE-DENIAL INVESTIGATION AND OBTAIN-** 24 **ABILITY**

25 19. Plaintiff alleges that the collision occurred on or about February 4, 2021. Plaintiff further
26 alleges that, because law enforcement responded and the incident was reported through emergency
27 channels, foundational objective incident records were generated contemporaneously in the or-
28 dinary course, including a 911 call recording, computer aided dispatch ("CAD") logs reflecting

1 the dispatch and response sequence, and officer body-worn camera footage (“BWC”) capturing
2 on-scene statements and observations.

3 20. Plaintiff alleges that CSAA’s Denial Letter dated February 25, 2021 necessarily represented
4 that CSAA had completed whatever investigation it claims to have performed during the approx-
5 imately three-week period between February 4, 2021 and February 25, 2021. Plaintiff further
6 alleges that the 911 recording and CAD logs were readily identifiable, requestable, and obtainable
7 within that time period through routine insurer claim-handling practices and ordinary third-party
8 record requests, and that BWC evidence was likewise identifiable and obtainable through appro-
9 priate requests, subpoenas, and/or law-enforcement record channels where liability was contested
10 and police responded.

11 21. Plaintiff further alleges that the practical obtainability of the 911 recording is corroborated by
12 later objective record history: Plaintiff’s then-counsel (Dolan Law Firm) obtained the 911 audio
13 recording on May 12, 2021, as reflected in sworn hearing testimony in the Underlying Action.
14 (Hearing Tr., Feb. 18, 2025, p. 31, ll. 22–24.) Plaintiff alleges that the same categories of foun-
15 dational objective evidence were obtainable during the period CSAA represented its investigation
16 had already “concluded,” and that CSAA’s failure to obtain and review such evidence before issu-
17 ing a categorical denial renders the “investigation concluded” representation materially false or, at
18 minimum, recklessly made without reasonable grounds.

19 21A. Plaintiff further alleges that the 911 call recording itself contains Defendant’s insured Subhi
20 Abdelhalim’s own admission, in substance: “I barely hit him with anything.” This admission was
21 authenticated by Abdelhalim at trial in the Underlying Action, when he confirmed under oath “Yes.
22 That is my voice.” (RT Day 8, 4/17/25, Line 1979.) Plaintiff alleges that the logical impossibility
23 of CSAA’s position is thereby demonstrated: if CSAA had in fact obtained and reviewed the 911
24 recording as part of a “concluded” investigation, CSAA could not have reached a conclusion that
25 its insured was “not liable” in the face of its own insured’s admission of contact. The existence of
26 this admission corroborates either that CSAA never obtained the recording (rendering the “investi-
27 gation concluded” representation false) or that CSAA obtained it and disregarded it (rendering the
28 denial reckless or fraudulent).

OBJECTIVE CLAIM ACTIVITY AFTER THE DENIAL LETTER

22. Plaintiff alleges that CSAA's post-denial claim activity reflects subsequent efforts to obtain the same foundational objective liability evidence identified above—i.e., 911 audio, body-worn camera footage, and computer aided dispatch records—corroborating that CSAA's investigation was not actually concluded when CSAA issued the Denial Letter, **and corroborating that CSAA's "investigation concluded" representation conveyed investigative finality that was untrue when made.**

Corroboration of Scienter and Institutional Claim-Suppression Purpose (DDD)

22A. Plaintiff alleges that describing an investigation as "concluded" in a categorical liability denial is not a neutral phrase; it is a representation of investigative finality that carries foreseeable coercive force. A reasonable consumer understands "concluded investigation" to mean the insurer has already obtained and evaluated basic objective incident records typically used to verify liability—especially where such records are readily obtainable from public agencies or routine channels.

22B. Plaintiff alleges CSAA's failure to obtain and review the foundational objective liability records identified above before issuing a categorical "investigation concluded / not liable" denial supports an inference of scienter: either CSAA actually knew the investigation was not complete when it represented otherwise, or CSAA made the representation recklessly without reasonable grounds for believing it true, because the existence and relevance of such records are obvious and central to a reasonable liability investigation.

22C. Plaintiff further alleges the purpose and natural consequence of falsely representing investigative finality is institutional claim suppression—i.e., to shift the cost and delay of basic evidence collection to the claimant, increase the claimant's burden to continue, and induce abandonment, curtailment, or discounted resolution. Plaintiff alleges this is consistent with a deny-delay-defend pattern in which the insurer creates leverage through delay and burden-shifting rather than through a good-faith investigation.

22D. Plaintiff alleges that CSAA's later claim activity corroborates the falsity and further corroborates CSAA's state of mind at the time of the Denial Letter, because post-denial efforts to obtain

1 the same foundational objective records are inconsistent with the claim that CSAA had already
2 “concluded” its investigation as of February 25, 2021.

3 **22E.** Plaintiff pleads paragraphs 22A–22D as corroboration of CSAA’s knowledge, recklessness,
4 and institutional purpose at the time of the Denial Letter, and not as an attempt to litigate privileged
5 communications or to transform this action into a separate “fraud on the court” cause of action.

6 **22F.** Upon information and belief, Plaintiff further alleges that CSAA funded and directed the
7 defense of the Underlying Action, Case No. CGC-21-594102, through retained defense counsel,
8 and that CSAA-funded counsel subsequently repeated and perpetuated the denial pattern in court
9 by making false and misleading representations regarding receipt, possession, and prior production
10 of the same foundational objective evidence CSAA had failed to obtain before issuing the Denial
11 Letter. Plaintiff alleges this continuity between CSAA’s pre-litigation misrepresentation and its
12 litigation-stage denial posture further corroborates the institutional deny–delay–defend purpose
13 and scienter alleged herein.

14 **RELIANCE AND ECONOMIC INJURY**

15 23. Plaintiff alleges he reasonably and justifiably relied on CSAA’s written statement that its
16 investigation was “concluded” by understanding it, in ordinary consumer meaning, to represent
17 that CSAA had already obtained and reviewed foundational objective liability evidence before
18 issuing a categorical denial—**not merely that CSAA had reached an opinion, but that CSAA**
19 **had completed the basic investigative steps that would justify stating the investigation itself**
20 **was finished.**

21 24. Plaintiff alleges that, as a direct and proximate result of CSAA’s misrepresentation, Plain-
22 tiff incurred discrete out-of-pocket procurement and investigation expenses to obtain records and
23 evidence that CSAA represented had already been investigated, including:

- 24 • fees paid to obtain public records and related materials;
- 25 • fees paid for copying, certification, and retrieval; and
- 26 • fees paid for transcription and review of obtained audio and video.

FORCED THIRD-PARTY LITIGATION AND PRENTICE ATTORNEY-FEE DAMAGES

25. Plaintiff alleges that CSAA's Denial Letter misrepresentation reasonably and foreseeably forced Plaintiff into third-party litigation in CGC-21-594102 to vindicate his claim and to obtain and authenticate foundational objective evidence relevant to liability, because CSAA's misrepresentation and continuing denial position functionally required Plaintiff to undertake record procurement and authentication burdens CSAA represented had already been completed, thereby increasing delay and pressure to give up.

25A. Plaintiff further alleges that the third-party litigation forced by CSAA's Denial Letter misrepresentation culminated in a 9-3 defense verdict in the Underlying Action, in which the jury was deprived of the governing legal standard and foundational evidence as a result of defense-side false representations regarding possession and prior production of the very evidence CSAA had failed to obtain before declaring its investigation "concluded." The scope and severity of the *Prentice* damages are measured by the full burden of the forced litigation, including a trial that was corrupted by the ongoing consequences of CSAA's initial misrepresentation.

26. Plaintiff alleges that the third-party litigation generated incremental evidence procurement and authentication burdens, and that Plaintiff incurred fees and litigation costs in that third-party action that would not have been incurred but for CSAA's Denial Letter misrepresentation.

27. Plaintiff alleges that the fees and costs incurred in the third-party litigation are sought here as tort damages under the tort-of-another doctrine described in *Prentice v. North Am. Title Guar. Corp.* (1963) 59 Cal.2d 618, because CSAA's tortious conduct caused Plaintiff to incur fees in litigation with another party.

28. Plaintiff does not seek attorney fees in this action as a prevailing-party fee award. Plaintiff seeks third-party litigation fees and costs as consequential damages proximately caused by CSAA's Denial Letter misrepresentation, subject to proof and segregation.

29. Plaintiff alleges that, consistent with California proof requirements for attorney-fee damages (including segregation and reasonableness requirements under California law), Plaintiff will prove at trial:

- the fact of the fees and costs incurred through competent evidence;
- that the fees and costs were reasonably and necessarily incurred as a proximate result of CSAA's Denial Letter misrepresentation; and
- segregation of recoverable fees and costs from any non-recoverable or unrelated time entries and tasks.

LOST EARNINGS, LOSS OF EARNING CAPACITY, AND LOST PRODUCTIVE TIME CAUSED BY FRAUD-INDUCED BURDENS

30. Plaintiff alleges that CSAA's Denial Letter misrepresentation created incremental burdens that required Plaintiff to spend substantial time and effort obtaining, reviewing, organizing, transcribing, authenticating, and presenting foundational objective evidence that CSAA represented had already been investigated before issuing a categorical denial.

31. Plaintiff alleges that these incremental tasks and burdens were reasonably foreseeable consequences of CSAA's misrepresentation and would not have been incurred, or would have been materially reduced, had CSAA truthfully investigated and communicated the status of its investigation rather than stating it was "concluded."

32. Plaintiff alleges that the incremental burdens described above caused Plaintiff to lose earnings and productive time, including time diverted from employment, business activity, recovery, and ordinary life functions, and that Plaintiff will prove the amount and value of this loss with competent evidence, including time logs, calendars, earnings history, and related documentation.

FRAUD-INDUCED DELAY, PHYSICAL EXACERBATION, AND ADDITIONAL HEALTH-RELATED HARM

33. Plaintiff alleges he suffered severe injuries in the underlying collision and that CSAA knew, or had reason to know, from the nature of the claim and the information provided in connection with the bodily-injury liability claim, that Plaintiff was physically vulnerable and that prolonged stress, delay, and repeated high-strain demands would foreseeably impose additional physical toll.

34. Plaintiff alleges that CSAA's false statement that its investigation was "concluded" foreseeably forced Plaintiff into a protracted and burdensome multi-year effort to establish and authenticate

1 foundational objective evidence relevant to liability, resulting in recurring high-strain events in-
2 cluding prolonged sitting, travel, preparation demands, and extended periods of stress and uncer-
3 tainty.

4 35. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay and burdens
5 described herein, Plaintiff suffered incremental physical harm beyond the underlying collision
6 injuries, including exacerbation of pain, flare episodes, sleep disruption, deconditioning, and func-
7 tional decline, and that Plaintiff required additional medical or therapeutic care to address these
8 incremental harms.

9 36. Plaintiff alleges that the incremental physical harm described herein is pleaded as a separate
10 “fraud-delta” category of damages proximately caused by CSAA’s misrepresentation and is not
11 intended to duplicate damages sought or awarded for the underlying collision itself.

12 **EMOTIONAL DISTRESS, HUMILIATION, AND PSYCHOLOGICAL**
13 **HARM PROXIMATELY CAUSED BY FRAUD-INDUCED DELAY AND**
14 **BURDENS**

15 37. Plaintiff alleges that CSAA’s Denial Letter conveyed finality by stating, in substance, that
16 CSAA had “concluded” its investigation and “concluded” its insured was not liable. Plaintiff
17 alleges that this representation, when false, foreseeably inflicted substantial emotional and psy-
18 chological harm by placing Plaintiff in the position of being categorically denied while also being
19 forced to personally bear the burden of obtaining and proving the foundational objective evidence
20 CSAA represented had already been investigated.

21 38. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay, uncertainty,
22 and forced proof burdens described herein, Plaintiff suffered emotional distress and psychologi-
23 cal harm including anxiety, persistent stress, sleep disruption, and related symptoms, as well as
24 humiliation and loss of dignity associated with being treated as though his claim lacked merit
25 notwithstanding the existence of readily obtainable objective evidence.

26 39. Plaintiff alleges that the emotional and psychological harm described herein manifested phys-
27 ically and functionally, including exacerbation of pain and impairment of daily functioning, and

1 that Plaintiff incurred additional out-of-pocket medical or therapeutic expenses related to managing
2 these conditions.

3 40. Plaintiff alleges that the emotional, psychological, and dignitary harms described herein are
4 pleaded as incremental “fraud-delta” damages proximately caused by CSAA’s misrepresentation
5 and the resulting burdens, and not as a duplication of the pain and suffering caused by the under-
6 lying collision itself.

7 **ADDITIONAL SPECIAL DAMAGES: MEDICAL/THERAPEUTIC EX-**
8 **PENSES, TRANSPORTATION, AND HOUSEHOLD ASSISTANCE**

9 41. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay and burdens
10 described herein, Plaintiff incurred additional out-of-pocket expenses including, but not limited
11 to, medical visits, therapy or counseling, medication expenses, transportation expenses associated
12 with treatment and required events, and costs of assistance with household tasks and self-care that
13 were increased by the incremental physical and psychological toll caused by the fraud-induced
14 delay.

15 42. Plaintiff will prove the amount of these additional out-of-pocket expenses with competent
16 documentary evidence, including invoices, receipts, medical billing records, pharmacy records,
17 and other admissible proof.

18 **FUTURE DAMAGES CAUSED BY FRAUD-INDUCED AGGRAVATION**
19 **AND ONGOING HARM**

20 43. Plaintiff alleges that the fraud-induced physical and psychological toll described herein has
21 ongoing consequences and may require future medical or therapeutic care, and may continue to
22 impair Plaintiff’s ability to work and to engage in ordinary life activities. Plaintiff seeks recovery
23 of future economic and non-economic damages proximately caused by CSAA’s fraud, according
24 to proof.

1 **CAUSES OF ACTION**

2 **FIRST CAUSE OF ACTION**

3 **FRAUD AND DECEIT (CIV. CODE §§ 1709-1710)**

4 **(AGAINST CSAA AND DOES 1-25)**

5 44. Plaintiff realleges and incorporates by reference paragraphs 1 through 43 as though fully set
6 forth herein.

7 45. On February 25, 2021, CSAA, through a claims representative whose identity is presently
8 unknown to Plaintiff and is therefore sued as Doe 1, mailed Plaintiff the Denial Letter (Exhibit A),
9 a standardized CSAA denial communication on CSAA letterhead regarding Claim No. 1004-09-
10 1054 and signed by Sarah Rash, Claims Representative, stating that CSAA had “concluded” its
11 investigation and “concluded” that its insured was not liable, **as a business claim decision and**
12 **denial communication issued in the ordinary course of CSAA’s claim-handling practices.**

13 46. Plaintiff alleges this statement was a representation of an existing or past fact—**investigative**
14 **finality**—namely that CSAA had already completed its investigation as of the Denial Letter date
15 and that its liability conclusion was based on that completed investigation.

16 47. Plaintiff alleges the representation was false when made because CSAA had not obtained
17 and reviewed **basic, readily obtainable, foundational objective liability evidence**—including
18 the 911 audio, body-worn camera footage, and computer aided dispatch records—as of February
19 25, 2021. Plaintiff further alleges that these categories of foundational objective evidence were
20 generated contemporaneously with the February 4, 2021 incident and were identifiable and obtain-
21 able during the period CSAA claimed its investigation had “concluded,” as alleged in paragraphs
22 19 through 21.

23 48. Plaintiff alleges CSAA knew the representation was false when made, or made it recklessly
24 without reasonable grounds for believing it to be true, **because a reasonable insurer would know**
25 **that a liability investigation cannot be truthfully described as “concluded” without obtaining**
26 **and reviewing the foundational objective incident records identified above (or, at minimum,**
27 **without knowing whether such records exist and what they show).** Plaintiff further alleges

1 CSAA made the representation as **institutional leverage**—with intent to induce Plaintiff to aban-
2 don, curtail, or discount pursuit of his claim—by falsely presenting investigative finality, shifting
3 basic evidence-procurement burdens onto Plaintiff, and increasing delay and pressure consistent
4 with deny–delay–defend claim suppression.

5 **48A.** Plaintiff alleges CSAA’s conduct was not a mere negligent miscommunication. It was an
6 affirmative business representation of investigative finality used to obtain leverage over an injured
7 claimant. Plaintiff alleges that falsely declaring an investigation “concluded” while omitting basic
8 foundational record collection constitutes despicable conduct in willful disregard of the rights of
9 others because its natural and probable consequence is to increase the claimant’s burdens, delay,
10 and coercive pressure to give up.

11 **48B.** Upon information and belief, Plaintiff alleges CSAA’s denial-letter wording and claim-handling
12 approach reflect institutional practices, training, supervision, and performance incentives that au-
13 thorize, encourage, or tolerate categorical denial communications representing investigative final-
14 ity when foundational objective evidence has not been obtained or reviewed, including claim-
15 closure targets, supervisor review practices for liability denials, and standardized denial letter tem-
16 plates.

17 **48C.** Upon information and belief, Plaintiff alleges CSAA’s officers, directors, or managing agents
18 authorized, ratified, or were aware of and consciously disregarded these practices, thereby support-
19 ing punitive damages under Civil Code section 3294 to the extent proven.

20 49. Plaintiff alleges he justifiably relied on CSAA’s representation and that his reliance was a
21 substantial factor in causing the economic losses pleaded herein.

22 50. As a direct and proximate result of CSAA’s fraud and deceit, Plaintiff alleges he incurred and
23 continues to incur damages including:

24 (a) Out-of-pocket procurement and investigation expenses incurred to obtain foundational objec-
25 tive evidence that CSAA represented had already been investigated, including fees paid to obtain
26 public records and related materials, copying/certification/retrieval fees, and transcription and re-
27 view expenses;

28 (b) Attorney fees and litigation costs incurred in the related third-party litigation that Plaintiff

1 alleges were proximately caused by CSAA's misrepresentation and are recoverable as damages
2 under *Prentice v. North Am. Title Guar. Corp.* (1963) 59 Cal.2d 618, subject to proof and
3 segregation as alleged;

4 (c) Lost earnings, diminished earning capacity, and lost productive time attributable to the in-
5 cremental procurement, review, authentication, and litigation-support burdens created by CSAA's
6 misrepresentation, segregated from attorney-fee damages and to be proven with competent, non-
7 speculative evidence, **including incremental time burdens caused by CSAA's burden-shifting**
8 **and delay leverage inherent in falsely representing investigative finality;**

9 (d) Additional medical, therapeutic, and health-related expenses proximately caused by the fraud-
10 induced delay and burdens described herein, including expenses incurred to address incremental
11 physical exacerbation and stress-related conditions;

12 (e) Incremental non-economic harm proximately caused by the fraud-induced delay and burdens,
13 including physical exacerbation, increased pain and suffering, emotional distress, humiliation, loss
14 of enjoyment of life, and impairment of ordinary functioning, all pleaded as "fraud-delta" damages
15 that are distinct from the underlying collision damages; and

16 (f) Future economic and non-economic damages proximately caused by CSAA's fraud, according
17 to proof.

18 51. Plaintiff alleges that CSAA's conduct was willful, oppressive, and fraudulent within the mean-
19 ing of Civil Code section 3294 in that CSAA stated its investigation was "concluded" and issued
20 a categorical liability denial without having obtained and reviewed foundational objective liability
21 evidence, and did so in a manner intended to convey investigative finality and to discourage or
22 defeat valid claims.

23 52. Plaintiff alleges that CSAA knew, or acted in conscious disregard of the high probability, that an
24 injured claimant faced with a categorical denial and false investigative finality would foreseeably
25 suffer substantial harm, including the shifting of evidence burdens, protracted delay, and physical
26 and psychological toll, and that CSAA's conduct was despicable in light of Plaintiff's physical
27 vulnerability and the foreseeable consequences of delay and forced proof burdens.

28 53. Plaintiff is informed and believes, and based thereon alleges, that CSAA's denial-letter lan-

1 guage and claims-handling conduct described herein was authorized, ratified, or approved by one
2 or more officers, directors, or managing agents of CSAA, or was implemented pursuant to corpo-
3 rate training, policies, metrics, or supervisory practices designed to use categorical denial commu-
4 nications to obtain claims leverage and delay, and that such authorization or ratification supports
5 an award of punitive damages against CSAA.

6 53A. Plaintiff further alleges that the Denial Letter's standardized form language ("concluded our
7 investigation" / categorical liability denial) and its use as a claims-handling communication support
8 a reasonable inference that the challenged denial-letter practice was implemented, approved, or
9 ratified at a managerial or policy level rather than being an isolated, ad hoc statement.

10 54. Plaintiff seeks compensatory damages according to proof at trial, including economic and
11 non-economic fraud-delta damages as alleged herein, and seeks punitive damages in an amount
12 sufficient to punish and deter, to the extent permitted by law.

13 **SECOND CAUSE OF ACTION**

14 **VIOLATION OF BUSINESS & PROFESSIONS CODE § 17200 (UCL)** 15 **(AGAINST CSAA AND DOES 26-50)**

16 55. Plaintiff realleges and incorporates by reference paragraphs 1 through 54 as though fully set
17 forth herein.

18 56. CSAA engaged in unlawful, unfair, and fraudulent business acts and practices within the
19 meaning of Business and Professions Code section 17200, including issuing the Denial Letter
20 as alleged above, **as part of a claim-handling practice that uses categorical "investigation**
21 **concluded" denial communications to create leverage through burden-shifting and delay.**

22 57. Unlawful: Plaintiff alleges CSAA's conduct constitutes common-law fraud and deceit in vio-
23 lation of Civil Code sections 1709 and 1710.

24 58. Fraudulent: Plaintiff alleges CSAA's denial-letter practice is likely to deceive because a reason-
25 able consumer would understand a statement that an investigation is "concluded" to mean the in-
26 surer has obtained and reviewed foundational objective liability evidence **or otherwise completed**
27 **the basic investigative steps necessary to truthfully represent investigative finality** before is-

1 suing a categorical liability denial, particularly where such evidence is generated at the time of the
2 incident through 911 and police response channels and is ordinarily obtainable during a routine
3 claim investigation.

4 59. Unfair: Plaintiff alleges CSAA's practice of issuing categorical denials that state an inves-
5 tigation is "concluded" when foundational objective liability evidence has not been obtained or
6 reviewed causes substantial injury by shifting the cost of basic evidence collection and authentica-
7 tion burdens onto the injured claimant, **creating delay and coercive pressure consistent with a**
8 **deny-delay-defend pattern that induces abandonment or undervalued resolution.**

9 60. Plaintiff has standing to pursue this claim because he has lost money or property as a result of
10 CSAA's unfair competition, including out-of-pocket procurement and investigation costs.

11 60A. Plaintiff also seeks injunctive relief because CSAA's challenged denial-letter practice is on-
12 going and, absent court-ordered restraint, threatens continuing and repeated injury. CSAA's "in-
13 vestigation concluded" denial language and related burden-shifting practice continues to be used
14 to resist payment and to impose evidentiary procurement burdens, including on Plaintiff in connec-
15 tion with the continuing dispute over CSAA's denial and the consequences alleged herein. Because
16 CSAA has not retracted the Denial Letter and continues to maintain the denial position, Plaintiff
17 faces a real and immediate threat of repeated application of the same denial-letter practice and
18 proof-burden shifting in ongoing and future efforts to obtain claim-related relief, absent injunctive
19 restraint.

20 61. Plaintiff seeks:

- 21 • restitution of the out-of-pocket procurement and investigation costs according to proof; and
- 22 • injunctive relief enjoining CSAA from issuing denial letters stating an investigation is "con-
23 cluded" **unless and until** CSAA has obtained and reviewed foundational objective liability
24 evidence reasonably necessary to support such a representation, including where applicable
25 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly**
26 **discloses that such records were not obtained and reviewed before stating any liability**
27 **conclusion;**

1 **PRAYER FOR RELIEF**

2 WHEREFORE, Plaintiff prays for judgment as follows:

- 3 1. For restitution pursuant to Business and Professions Code section 17200, in an amount according
4 to proof;
- 5 2. For injunctive relief enjoining CSAA from issuing denial letters stating an investigation is
6 "concluded" **unless and until** CSAA has obtained and reviewed foundational objective liability
7 evidence reasonably necessary to support such a representation, including where applicable 911
8 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses**
9 **that such records were not obtained and reviewed before stating any liability conclusion;**
- 10 3. For compensatory damages for economic and non-economic losses caused by fraud and deceit
11 according to proof, including out-of-pocket procurement and investigation expenses, additional
12 medical/therapeutic expenses, and fraud-delta physical and emotional harm as alleged;
- 13 4. For attorney fees and litigation costs as damages to the extent permitted under *Prentice v. North*
14 *Am. Title Guar. Corp.* (1963) 59 Cal.2d 618 and proven with segregation and reasonableness as
15 alleged;
- 16 5. For punitive damages to the extent permitted by law;
- 17 6. For costs of suit;
- 18 7. For prejudgment interest as permitted by law; and
- 19 8. For such other and further relief as the Court deems just and proper.

20 **DEMAND FOR JURY TRIAL**

21 62. Plaintiff hereby demands a trial by jury on all causes of action so triable.

22 DATED: February 25, 2026

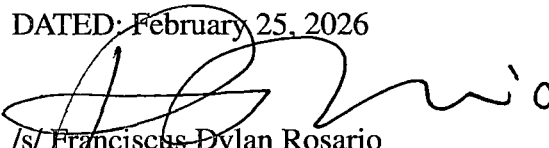
23 
24 /s/ Franciscus Dylan Rosario
25 FRANCISCUS DYLAN ROSARIO
26 Plaintiff, In Pro Per
27 7624 Melody Dr., Rohnert Park, CA 94928
28 650.488.7510
soltrinox@gmail.com

EXHIBIT B

THE SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

Case Number: CGC21594102
Title: FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL
Cause of Action: PERSONAL INJURY/PROPERTY DAMAGE - VEHICLE RELATED
Generated: 2026-03-25 3:16 pm

Register of Actions Parties Attorneys Calendar Payments Documents

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Register of Actions

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2025-06-04	DECLARATION OF ALBERTO REYNA IN SUPPORT OF [PROPOSED] ORDER ON MEMORANDUM OF COSTS IN FAVOR OF DEFENDANT SUBHI ABDELHALIM (TRANSACTION ID # 76400627) (TRANSACTION ID # 76400627) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
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2025-05-28	LAW AND MOTION, 504, PLAINTIFF'S MOTION TO DECLARE A MISTRIAL BASED ON PREJUDICIAL JUDICIAL ERROR ARISING FROM IMPROPER INSTRUCTION AND TAINTED JURY RESPONSE, DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	LAW AND MOTION, 504, PLAINTIFF'S MOTION FOR MISTRIAL BASED ON PREJUDICIAL LEGAL ERROR: MISAPPLICATION OF VS 21651 AND ERRONEOUS NEGLIGENCE PER SE INSTRUCTION; IMPROPER COMPARATIVE FAULT ARGUMENTS CONTRARY TO VC 21950 AND "FUNCTIONAL PEDESTRIAN" DOCTRINE, DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
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2025-05-27	PLAINTIFF'S MOTION FOR MISTRIAL BASED ON PREJUDICIAL LEGAL ERROR: MISAPPLICATION OF VS 21651 AND ERRONEOUS NEGLIGENCE PER SE INSTRUCTION; IMPROPER COMPARATIVE FAULT ARGUMENTS CONTRARY TO VC 21950 AND "FUNCTIONAL PEDESTRIAN" DOCTRINE, DECLARATION FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-28-2025 AT 09:00 AM IN DEPT 504	View	IFP
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2025-04-15	MINUTES FOR APR-15-2025 9:30 AM	View	
2025-04-14	MOTION TO BIFURCATE AND SUBMIT SPECIAL VERDICT ON CAUSATION PRIOR TO DAMAGES PHASE; - PROPOSED SPECIAL VERDICT FORM (CAUSATION AND FAULT ONLY); - 1-PAGE BENCH BRIEF (TRANSACTION ID # 76067216) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
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2025-04-14	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 76059449) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-14	MOTION TO ADMIT BUSINESS RECORDS UNDER EVID. CODE 1271 (TRANSACTION ID # 76057980) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-04-14	TRIAL MOTION TO ADMIT MEDICAL RECORDS AS BUSINESS RECORDS (EVIDENCE CODE 1271, 1560, 1561 (TRANSACTION ID # 76057980) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-14	DECLARATION OF FRANCISCUS ROSARIO AS CUSTODIAN OF BUSINESS RECORDS PURSUANT TO CALIFORNIA EVIDENCE CODE 1271 (TRANSACTION ID # 76057980) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-10	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.18 TO PRECLUDE PLAINTIFF, OR ANYONE ON PLAINTIFF'S BEHALF, FROM TESTIFYING OR PRESENTING ARGUMENT AS TO FUTURE LOSS OF EARNING CAPACITY, FUTURE LOSS OF EARNINGS AND PAST LOSS OF EARNINGS	View	
2025-04-10	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.14 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL TREATMENT	View	
2025-04-10	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.3 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL SPECIALS/EXPENSES	View	
2025-04-10	ORDER ORDER DENYING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.2 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HIS ALLEGED INJURIES WERE CAUSE BY DEFENDANT.	View	

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2025-04-10	JURY TRIAL SET FOR APR-10-2025 CONTINUED TO APR-14-2025 AT 9:30 AM IN 504 FOR PRETRIAL MOTIONS & JURY HARDSHIPS. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).		
2025-04-10	ORDER 1) DENYING "PLAINTIFF'S PEREMPTORY CHALLENGE TO JUDICIAL ASSIGNMENT PURSUANT TO CCP 170.6;" 2) DENYING 'PLAINTIFF'S MOTION FOR RECONSIDERATION AND REMINDER OT THE COURT REGARDING MANDATORY PROVISIONS OF CCP 170.6;" 3) STRIKING "PLAINTIFF DECLARATION AND MEMORANDUM OF JUDICIAL BIAS AND PROCEDURAL ABUSE SUPPORTING MISTRIAL PURSUANT TO CCP 657 AND JUDICIAL DISQUALIFICATION UNDER CCP 170.1;" 4) STRIKING "OPPOSITION TO GARRET [SIC] WONG DENIAL OF MOTION AND MOTION FOR RECONSIDERATION TO DEMAND RECUSAL JUDGE UNDER CCP 170.1;" 5) STRIKING "PLAINITFF FRANCISCUS DYLAN ROSARIO VERIFIED DECLARATION OF IN SUPPORT OF STATEMENT OF DISQUALIFICATION UNDER CCP 170.1(A)(6)(A)(III);" 6) STRIKING 'PLAINTIFF'S VERIFIED STATEMENT OF DISQUALIFICATION OF JUDGE GARRET [SIC] L. WONG PURSUANT TO CCP 170.1(A)(6)(A)(III);" IN THE ALTERNATIVE, VERIFIED ANSWER OF JUDGE GARRETT L. WONG. [TRANSACTION# 76047901]	View	
2025-04-10	MINUTES FOR APR-10-2025 9:30 AM	View	
2025-04-10	TRIAL BRIEF JURY ARGUMENT NOTES - EXPERT CHALLENGE ? DR. TERENCE DELANEY, ORTHOPEDIC SURGEON (TRANSACTION ID # 76039740) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-09	THIRD REQUEST SUPPLEMENTAL JUDICIAL NOTICE FOR CLARIFICATION AND OBIOUSNESS PURSUANT TO EVIDENCE CODE 452(G) AND (H) (TRANSACTION ID # 76039710) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-09	REQUEST FOR JUDICIAL NOTICE PART 2 (TRANSACTION ID # 76039710) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-09	MOTION FOR RECONSIDERATION OF RULING ON DEFENDANT?'S MOTION IN LIMINE NO. 8 (TRANSACTION ID # 76039629) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-04-09	TRIAL BRIEF (TRANSACTION ID # 76039464) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-08	MOTION FOR JUDGMENT ON THE PLEADINGS (TRANSACTION ID # 76018066) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-04-08	MOTION FOR COURT-APPOINTED EXPERT (TRANSACTION ID # 76018043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-04-07	JURY TRIAL SET FOR APR-07-2025 CONTINUED TO APR-10-2025 AT 9:30 AM IN 504 FOR A 402 HEARING. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).		
2025-04-07	MINUTES FOR APR-07-2025 10:00 AM	View	
2025-04-07	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO. 8 TO EXCLUDE ANY AND ALL REFERENCE OR TESTIMONY RELATING TO LIABILITY INSURANCE AND PREJUDICIAL STATEMENTS WHICH ARE IRRELEVANT TO THE ISSUES IN THIS CASE	View	
2025-04-07	ORDER GRANTING DEFENDANT SBHI ABDELHALIM;'S MOTION IN LIMINE NO. 19 TO EXCLUDE TESTIMONY OR ARGUMENT RELATING TO THE ERRONEOUS AND DEFAMATORY ALLEGATIONS OF ALLEGED DRUG ACTIVITY AT DEFENDANT'S PLACE OF BUSINESS	View	
2025-04-07	OBJECTION TO ADMISSION OF ANY TESTIMONY AND OR OPINIONS BY DR. RENE GONZALEZ AT TRIAL (TRANSACTION ID # 76011365) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-04	STATEMENT OF CASE (TRANSACTION ID # 76008605) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-04	*AMENDED* EXHIBIT LIST FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-04	PLAINTIFF'S DESIGNATION OF DEPOSITION TESTIMONY (AND SUPPORTING DECLARATION) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2025-04-02	JURY TRIAL SET FOR APR-02-2025 CONTINUED TO APR-07-2025 AT 10:00 AM IN 504 FOR CONTINUED MOTIONS IN LIMINE. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).		
2025-04-02	TRIAL TIME ESTIMATE (TRANSACTION ID # 75986179) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-02	STATEMENT OF THE CASE (TRANSACTION ID # 75986179) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-02	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75986179) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-02	MINUTES FOR APR-02-2025 9:30 AM	View	
2025-04-01	JURY TRIAL SET FOR APR-01-2025 CONTINUED TO APR-02-2025 AT 9:30 AM IN 504 FOR MOTIONS IN LIMINE. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).		
2025-04-01	TRIAL MOTION CALENDAR ON APR-01-2025 IN DEPT. 504, NOTICE OF MOTION TO COMPEL DEFENDANT TO PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARRASING EMAILS AND MESSAGES" IS OFF CALENDAR. MOTION UNTIMELY FILED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, (504).		
2025-04-01	TRIAL MOTION CALENDAR ON APR-01-2025 IN DEPT. 504, MOTION TO COMPEL DEFENDANT TO PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARASSING EMAILS AND MESSAGES" IS OFF CALENDAR. MOTION UNTIMELY FILED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, (504).		
2025-04-01	TRIAL MOTION CALENDAR ON APR-01-2025 IN DEPT. 504, MOTION FOR RECONSIDERATION AND REMINDER TO THE COURT REGARDING THE MANDATORY PROVISIONS OF CCP 170.6 IS OFF CALENDAR. MOTION UNTIMELY FILED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, (504).		
2025-04-01	MINUTES FOR APR-01-2025 9:30 AM	View	
2025-04-01	JUROR QUESTIONNAIRE VOIR DIRE QUESTIONS (TRANSACTION ID # 75964849) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-01	MOTION IN LIMINE #87 (TRANSACTION ID # 75964849) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-01	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75964849) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-28	DECLARATION AND MEMORANDUM OF JUDICIAL BIAS AND PROCEDURAL ABUSE SUPPORTING MISTRIAL PURSUANT TO CCP 657 AND JUDICIAL DISQUALIFICATION UNDER CCP 170.1 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-28	PLAINTIFF FRANCISCUS DYLAN ROSARIO VERIFIED DECLARATION OF DISQUALIFICATION UNDER CCP 170.1(A)(6)(A)(III) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-28	NOTICE OF MOTION TO COMPEL DEFENDANT TO PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARRASING EMAILS AND MESSAGES" FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR APR-01-2025 AT 09:30 AM IN DEPT 504	View	IFP
2025-03-28	MOTION TO COMPEL DEFENDANT TO PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARASSING EMAILS AND MESSAGES" FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR APR-01-2025 AT 09:30 AM IN DEPT 504	View	IFP
2025-03-28	MOTION FOR RECONSIDERATION AND REMINDER TO THE COURT REGARDING THE MANDATORY PROVISIONS OF CCP 170.6 *FILED AT INSISTENCE* FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR APR-01-2025 AT 09:30 AM IN DEPT 504	View	IFP
2025-03-28	170.6 PEREMPTORY CHALLENGE PENDING AS TO JUDGE GARRETT L. WONG FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2025-03-28	OPPOSITION TO GARRET WONG DENIAL OF MOTION AND MOTION FOR RECONSIDERATION TO DEMAND RECUSAL JUDGE UNDER CCP 170.1 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-28	PLAINTIFF'S VERIFIED STATEMENT OF DISQUALIFICATION OF JUDGE GARRETT L. WONG PURSUANT TO CCP 170.1(A)(6)(A)(III) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-26	ORDER RE: TRIAL SCHEDULING [TRANSACTION# 75944567]	View	
2025-03-26	ORDER : (1) DENYING PLAINTIFF'S (FIVE) "NOTICE OF MOTION FOR DISQUALIFICATION OF JUDGE GARRET [SIC] WONG AND JUDICIAL REVIWE DUE TO CCP 170.6;" (2) STRIKING "PLAINTIFF'S MOTION FOR RECUSAL OR DISQUALIFICATION OF THE JUDGE GARRET [SIC] WONG AND DEMAND FOR RELIEF FROM CONSTITUTIONAL VIOLATIONS;" AND (3) STRIKING "NOTICE OF MOTION AND MOTION FOR JUDICIAL DISQUALIFICATION DUE TO CCP 170.1;" IN THE ALTERNATIVE, VERIFIED ANSWER OF JUDGE GARRETT L. WONG [TRANSACTION# 75944247]	View	
2025-03-26	EXHIBITS A TO Q FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-24	PROOF OF SERVICE BY ELECTRONIC MAIL **FILED AT INSISTENCE OF LITIGANT** (TRANSACTION ID # 75919739) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-24	NOTICE OF MOTION TO COMPEL DEFENDANT TO PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARASSING EMAILS AND MESSAGES" **FILED AT INSISTENCE OF LITIGANT** (TRANSACTION ID # 75919739) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-03-24	PROOF OF SERVICE BY ELECTRONIC MAIL **FILED AT INSISTENCE OF LITIGANT** (TRANSACTION ID # 75914857) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-24	MOTION FOR ADVERSE INFERENCE INSTRUCTION AND/OR EVIDENTIARY SANCTIONS **FILED AT INSISTENCE OF LITIGANT** (TRANSACTION ID # 75914857) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-03-24	NOTICE OF MOTION AND MOTION TO STRIKE DEFENDANT'S AFFIRMATIVE DEFENSES **FILED AT INSISTENCE OF LITIGANT** (TRANSACTION ID # 75914857) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-03-18	JURY TRIAL SET FOR MAR-24-2025 CONTINUED TO APR-01-2025 AT 9:30 AM IN 504, JUDGE: GARRETT L.WONG, CLERK: K.SEPTIEN, NOT REPORTED, (504).	View	
2025-03-17	JURY TRIAL SET FOR MAR-17-2025 CONTINUED TO MAR-24-2025 AT 9:30 AM IN 504. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: J. MATTEO CSR#12139, JMATTEOCSR@GMAIL.COM, (504).		
2025-03-17	REQUEST FOR JUDICIAL NOTICE INDISPUTABLE FACTS (TRANSACTION ID # 75868304) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-17	MOTION IN LIMINE NO. 84 MASTER (TRANSACTION ID # 75868232) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-17	MOTION IN LIMINE #88 (TRANSACTION ID # 75868232) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	NOTICE OF MOTION FOR JUDICIAL DISQUALIFICATION. DECLARATION OF PLAINTIFF IN SUPPORT OF DISQUALIFICATION. REQUEST FOR STAY OF PROCEEDINGS. MEMORANDUM FROM PLAINTIFF IN SUPPORT OF REASSIGNMENT. [PROPOSED] ORDER GRANTING MOTION FOR REASSIGNMENT. (TRANSACTION ID # 75858531) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	170.6 PEREMPTORY CHALLENGE PENDING AS TO JUDGE GARRETT L. WONG (TRANSACTION ID # 75858531) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	NOTICE OF MOTION FOR DISQUALIFICATION OF JUDGE GARRET WONG AND JUDICIAL REVIEW DUE TO CCP 170.6 (TRANSACTION ID # 75858441) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2025-03-13	170.6 PEREMPTORY CHALLENGE PENDING AS TO JUDGE GARRETT L. WONG (TRANSACTION ID # 75858441) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	170.6 PEREMPTORY CHALLENGE PENDING AS TO JUDGE GARRETT L. WONG (TRANSACTION ID # 75848944) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	170.1/170.3 CHALLENGE FOR CAUSE PENDING AS TO JUDGE GARRETT L. WONG (TRANSACTION ID # 75848944) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	PRAYER TO JUDGE HON. ROCHELLE EAST (TRANSACTION ID # 75848944) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	MOTION IN LIMINE 1-84 (TRANSACTION ID # 75848942) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-12	WITNESS LIST **AMENDED** (TRANSACTION ID # 75829917) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-03-12	EXHIBIT LIST **AMENDED** (TRANSACTION ID # 75829917) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-03-11	MOTION IN LIMINE NO. 20 TO EXCLUDE WITNESS DR. RENE GONZALEZ INCLUDING ANY AND ALL TESTIMONY, RECORDS AND OR OPINIONS FROM DR. RENE GONZALEZ (TRANSACTION ID # 75815974) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-03-10	REQUEST FOR JUDICIAL NOTICE JUDICIAL NOTICE (TRANSACTION ID # 75810833) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-10	170.1/170.3 CHALLENGE FOR CAUSE PENDING AS TO JUDGE GARRETT L. WONG (TRANSACTION ID # 75810833) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-10	PROOF OF SERVICE BY ELECTRONIC MAIL OF SUBPOENA FOR OFFICER MYKAEL THOMPSON, ETC. (TRANSACTION ID # 75800815) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-10	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75800767) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-10	SUPPLEMENTAL EVIDENCE AND EXHIBIT LIST + INDEX (TRANSACTION ID # 75800767) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-10	SUPPLEMENTAL WITNESS DESIGNATION (TRANSACTION ID # 75800767) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-03	ORDER AFTER HEARING RE: DEPOSITIONS OF PLAINTIFF'S TREATING PHYSICIANS (TRANSACTION#75757147]	View	
2025-02-28	JURY TRIAL SET FOR MAR-10-2025 CONTINUED TO MAR-17-2025 AT 9:30 AM IN DEPT. 504, PER THE COURT'S ORDER FROM FEB-28-2025 HEARING. JUDGE: HONORABLE GARRETT L. WONG; CLERK: C. CHENG; REPORTER: NOT REPORTED; BAILIFF: NOT ASSIGNED. (504)		
2025-02-28	TRIAL MOTION IN DEPT. 504, PLAINTIFF'S [PROPOSED] MOTION PROTECTIVE ORDER AND ENFORCEMENT OF COURT ORDER REGARDING TREATING PHYSICIAN'S DEPOSITIONS HELD AND DENIED WITHOUT PREJUDICE. DEFENSE COUNSEL TO SUBMIT PROPOSED ORDER. JUDGE: HONORABLE GARRETT L. WONG; CLERK: C. CHENG; REPORTER: JAIME PLY, CSR #13323, T:714-316-3757, E:JPLYCSR@AOL.COM; BAILIFF: NOT ASSIGNED. (504)		
2025-02-28	MINUTES FOR FEB-28-2025 9:30 AM	View	
2025-02-25	ADDED TO CALENDAR FOR PLAINTIFF'S [PROPOSED] MOTION PROTECTIVE ORDER AND ENFORCEMENT OF COURT ORDER REGARDING TREATING PHYSICIAN'S DEPOSITIONS HEARING SET FOR FEB-28-2025 AT 09:30 AM IN DEPT 504		
2025-02-21	PROOF OF SERVICE (TRANSACTION ID # 75694070) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2025-02-21	PLAINTIFFS COMPLIANCE WITH COURT ORDER REGARDING TREATING PHYSICIANS DISCLOSURE (TRANSACTION ID # 75694070) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-02-18	JURY TRIAL SET FOR FEB-18-2025 CONTINUED TO MAR-10-2025 AT 9:30 AM IN 504 FOR MOTIONS IN LIMINE. JUDGE: GARRETT L. WONG, CLERK: A. MOK & K. SEPTIEN, REPORTER: S. CARRANZA, SANDYCARRANZA@COMCAST.NET, 415-328-5728, (504).		
2025-02-18	MINUTES FOR FEB-18-2025 9:30 AM	View	
2025-02-10	OPPOSITION TO PLAINTIFF'S MOTION FOR CONTINUANCE OF TRIAL DUE TO ADA PROTECTED MEDICAL REASONS AND TO REOPEN DISCOVERY (TRANSACTION ID # 75613308) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-02-04	JURY TRIAL SET FOR FEB-03-2025 FOR STATUS IS HELD AND CONTINUED TO FEB-18-2025 AT 9:30 AM IN 504 FOR FUTHER STATUS AND FILING OF MOTION TO CONTINUE. JUDGE: GARRETT L. WONG; CLERK: R. SAHATJIAN; REPORTER: LAURA AXELSEN CSR #6173 (707) 373-0613; DEPOS@L-DAK.COM (D504)		
2025-02-03	MINUTES FOR FEB-03-2025 9:30 AM	View	
2025-01-31	PROOF OF PERSONAL SERVICE OF SUBP-001, SUBP-002, MC-025 (2 PAGES) ***FILED PURSUANT TO LITIGANT'S REQUEST*** FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-28	JURY TRIAL SET FOR JAN-28-2025 CONTINUED TO FEB-03-2025 AT 9:30 AM IN 504 FOR STATUS CONFERENCE. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: ANGIE DINER CSR#8591, (504).		
2025-01-28	MINUTES FOR JAN-28-2025 8:00 AM	View	
2025-01-27	JURY TRIAL SET FOR JAN-27-2025 CONTINUED TO JAN-28-2025 AT 8:00 AM IN 504 FOR CONTINUED MOTIONS IN LIMINE. JUDGE GARRETT L. WONG, CLERK DENNIS D. VEGAS, CSR ALESIA L. COLLINS #7751, 504.		
2025-01-27	MINUTES FOR JAN-27-2025 1:30 PM	View	
2025-01-27	MASTER JURY TRIAL CALENDAR OF JAN-27-2025 -- APPEARANCES BY FRANCISCUS DYLAN ROSARIO, PLAINTIFF IN PRO PER; PRIYA NAVARATNASHINGHAM, ESQ. AND ALBERTO REYNA, ESQ. FOR DEFENDANT SUBHI ABDELHALIM -- ASSIGNED TO JURY TRIAL CALENDAR ON JAN-27-2025 AT 1:30 PM IN DEPT. 504, JUDGE GARRETT L. WONG. TRIAL TIME ESTIMATE: 5 DAYS. JUDGE: ROCHELLE EAST; CLERK: JIROQUE; COURT REPORTER: MATTER NOT REPORTED. (206)		
2025-01-27	OPPOSITION TO DEFENDANT'S MOTION IN LIMINE NO. 17 (TRANSACTION ID # 75515259) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	OPPOSITION TO DEFENDANT'S MOTION IN LIMINE NO. 17 (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	REBUTTAL TO DEFENDANT'S GLOBAL DECLARATION SUPPORTING MOTIONS IN LIMINE NOS. 1-19 (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	OBJECTION TO DEFENSE DECLARATIONS IN SUPPORT OF MOTION IN LIMINE (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	OPPOSITION TO DEFENDANT'S MOTIONS IN LIMINE NOS. 1-19 (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	PRAYER TO THE COURT (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	DECLARATION OF UNDISPUTED MATERIAL FACTS PURSUANT TO CRC RULE 3.1350 (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	DECLARATION AND PRAYER TO THE COURT, AND MOTION FOR RELIEF UNDER CCP 473 (TRANSACTION ID # 75515168) (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2025-01-23	PROOF OF PERSONAL SERVICE (TRANSACTION ID # 75500143) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-23	EX PARTE APPLICATION FOR ORDER TO EXCLUDE DEFENDANTS EXPERT WITNESSES FOR FAILURE TO COMPLY WITH TITLE 4 (CCP 2034) AND REQUEST FOR EVIDENCE SANCTIONS; MEMORANDUM OF POINTS AND AUTHORITIES; AND DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO ; WITH EXHIBIT A , B, C, AND D (TRANSACTION ID # 75500143) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-23	NOTICE OF EX PARTE APPLICATION AND EX PARTE APPLICATION FOR RELIEF UNDER CCP 473 ; AND MEMORANDUM OF POINTS AND AUTHORITIES; AND DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF RELIEF REQUEST; EXHIBIT A (TRANSACTION ID # 75500143) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-22	NOTICE OF APPLICATION ; EX PARTE APPLICATION FOR RELIEF UNDER CCP 473 (TRANSACTION ID # 75496885) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-22	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75496585) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-22	EX PARTE APPLICATION FOR ORDER TO EXCLUDE DEFENDANTS EXPERT WITNESSES FOR FAILURE TO COMPLY WITH TITLE 4 (CCP 2034) REQUEST FOR EVIDENCE SANCTIONS ROSARIO (TRANSACTION ID # 75496585) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-21	PROOF OF ELECTRONIC SERVICE (TRANSACTION ID # 75474623) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-21	PROPOSED MOTION IN LIMINE NO. 1 TO EXCLUDE DEFENDANTS EXPERT WITNESSES FOR FAILURE TO COMPLY WITH CCP 2034 AND REQUEST FOR EVIDENCE SANCTIONS (TRANSACTION ID # 75474623) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-21	EX PARTE APPLICATION TO EXCLUDE DEFENDANT'S EXPERT WITNESSES FOR FAILURE TO COMPLY WITH TITLE 4 (CCP 2034) AND REQUEST FOR EVIDENCE SANCTIONS (TRANSACTION ID # 75474623) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-21	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75472927) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-21	SEPARATE STATEMENT OF FACTS IN SUPPORT OF MOTION IN LIMINE NOS. 1 - 19 (TRANSACTION ID # 75472927) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-21	EX PARTE MOTION FOR RELIEF UNDER CCP 473 DUE TO EXCUSABLE NEGLIGENCE, MISTAKE, INADVERTENCE, OR SURPRISE (TRANSACTION ID # 75472927) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-17	PROOF OF SERVICE FOR GLOBAL STATEMENT OF FACTS IN SUPPORT OF DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO. 1 - 19, ETC. (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	GLOBAL DECLARATION IN SUPPPORT OF SUBHI ABDELHALIM'S MOTIONS IN LIMINE NOS. 1 -19 (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 19 TO EXCLUDE TESTIMONY OR ARGUMENT RELATING TO THE ERRONEOUS AND DEFAMATORY ALLEGATIONS OF ALLEGED DRUG ACTIVITY AT DEFENDANT'S PLACE OF BUSINESS (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 18 TO PRECLUDE PLAINTIFF, OR ANYONE ON PLAINTIFF'S BEHALF, FROM TESTIFYING OR PRESENTING ARGUMENT RELATING TO FUTURE LOSS OF EARNING CAPACITY, FUTURE LOSS OF EARNINGS AND PAST LOSS OF EARNINGS (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 17 TO PRECLUDE PLAINTIFF FROM USING OR REFERENCING AN ALLEGED 911 TRANSCRIPT LOG AND AUDIO RECORDING AS IT WAS NOT DISCLOSED IN DISCOVERY, LACKS FOUNDATION AND IS	View	

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	INADMISSIBLE HEARSAY (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI		
2025-01-17	MOTION IN LIMINE NO. 16 TO EXCLUDE TESTIMONY FROM PLAINTIFF'S WITNESSES NOT IDENTIFIED IN DISCOVERY (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 15 TO LIMIT EVIDENCE OF MEDICAL EXPENSES TO ACTUAL AMOUNTS PAID (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 14 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL TREATMENT (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 13 TO EXCLUDE EVIDENCE AND TESTIMONY OF SPECIAL DAMAGES NOT IDENTIFIED IN DISCOVERY AND EXPERT OPINIONS BASED ON UNDISCLOSED DAMAGES (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 12 TO EXCLUDE ANY TESTIMONY BY PLAINTIFF, OR ANY PERSON ON BEHALF OF PLAINTIFF, OF ANY ALLEGED STATEMENT MADE BY AN UNIDENTIFIED WITNESSES (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 11 TO PRECLUDE PLAINTIFF'S USE OF HIS INTERROGATORY RESPONSES IN HIS FAVOR AT TRIAL (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 10 TO EXCLUDE DEMONSTRATIVE EVIDENCE NOT INSPECTED BY DEFENSE COUNSEL (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 9 TO EXCLUDE ALL EVIDENCE AND STATEMENTS OF DEFENDANT'S FINANCIAL CONDITION (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 7 TO EXCLUDE TESTIMONY FROM PLAINTIFF'S FAMILY AND FRIENDS REGARDING THEIR OWN EMOTIONAL DISTRESS (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 6 TO EXCLUDE RECORDED MATERIALS, PHOTOGRAPHS, OR DOCUMENTS OFFERED BY PLAINTIFF THAT WERE NOT PRODUCED IN DISCOVERY (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 5 TO EXCLUDE TRIAL WITNESSES FROM THE COURTROOM WHO HAVE NOT YET TESTIFIED (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 4 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HE SUSTAINED ANY BRAIN INJURY INCLUDING BUT NOT LIMITED TO AN ALLEGED TRAUMATIC BRAIN INJURY, AND THAT HE HAS RESULTING COGNITIVE DEFICITS AS A RESULT OF THE INCIDENT (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 3 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL SPECIALS EXPENSES (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 2 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HIS ALLEGED INJURIES WERE CAUSED BY DEFENDANT (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 1 TO EXCLUDE PLAINTIFF FROM OFFERING ANY EXPERT OR NON-RETAINED EXPERT TESTIMONY (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	GLOBAL STATEMENT OF FACTS IN SUPPORT OF DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NOS. 1 - 19 (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	

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2025-01-17	MOTION IN LIMINE NO. 8 TO EXCLUDE ANY AND ALL REFERENCE OR TESTIMONY RELATING TO LIABILITY INSURANCE AND PREJUDICIAL STATEMENTS WHICH ARE IRRELEVANT TO THE ISSUES IN THIS CASE (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	DECLARATION OF PRIYA NAVARATNASINGHAM IN SUPPORT OF MOTIONS IN LIMINE NOS. 1 - 19 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 19 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 18 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 17 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 16 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 15 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 14 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 13 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 12 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 11 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 10 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 9 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	STATEMENT OF FACTS IN SUPPORT OF DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NOS. 1 - 19 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	PROOF OF SERVICE FOR MOTIONS IN LIMINES, ETC. (TRANSACTION ID # 75471070) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 7 TO EXCLUDE TESTIMONY FROM PLAINTIFF'S FAMILY AND FRIENDS REGARDING THEIR OWN EMOTIONAL DISTRESS (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 6 TO EXCLUDE RECORDED MATERIALS, PHOTOGRAPHS, OR DOCUMENTS OFFERED BY PLAINTIFF THAT WERE NOT PRODUCED IN DISCOVERY (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 5 TO EXCLUDE TRIAL WITNESSES FROM THE COURTROOM WHO HAVE NOT YET TESTIFIED (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 4 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HE SUSTAINED ANY BRAIN INJURY INCLUDING BUT NOT LIMITED TO AN ALLEGED TRAUMATIC BRAIN INJURY, AND THAT HE HAS RESULTING COGNITIVE (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO. 3 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY ARGUMENT AS TO FUTURE MEDICAL SPECIALS/EXPENSES (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	

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2025-01-17	MOTION IN LIMINE NO. 2 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HIS ALLEGED INJURIES WERE CAUSED BY DEFENDANT (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 1 TO EXCLUDE PLAINTIFF FROM OFFERING ANY EXPERT OR NON-RETAINED EXPERT TESTIMONY (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. CHITRA VENKATASUBRAMANIAN UNDER CCP FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. WILLIAM K. HODDICK UNDER FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT VANESSA J. HILL FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. HOWARD J. FRIEDMAN FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT VLADIMIR FILKOV UNDER FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. TERENCE DELANEY FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. CHITRA VENKATASUBRAMANIAN FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EX PARTE APPLICATION FOR AN ORDER EXCLUDING DEFENSE EXPERT VANESSA J. HILL FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EX PARTE APPLICATION FOR AN ORDER EXCLUDING DEFENSE EXPERT DR. HOWARD J. FRIEDMAN FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT VLADIMIR FILKOV FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP

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2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. TERENCE DELANEY FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	DECLARATION IN SUPPORT OF EX-PARTE APPLICATION TO EXCLUDE DEFENSE EXPERT TESTIMONY (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-15	EXHIBIT A. DISCOVERY TIMELINE IN SUPPORT OF EX PARTE APPLICATION TO EXCLUDE DEFENSE EXPERT TESTIMONY (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-15	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-15	REMARK: RE: EX PARTE APPLICATIONS. COURTESY COPIES OF PLAINTIFF'S EX PARTE APPLICATIONS WERE NOT PROVIDED TO DEPT. 302. NO HEARING IS HELD. EX PARTE APPLICATIONS ARE TO BE RENOTICED FOR THURSDAY 1/16/25. JUDGE: HAROLD E. KAHN; CLERK: W. TRUPEK; NOT REPORTED (302/HEK)		
2025-01-15	EXHIBIT A. DISCOVERY TIMELINE (TRANSACTION ID # 75440745) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-15	DECLARATION IN SUPPORT OF EX-PARTE APPLICATION TO EXCLUDE DEFENSE EXPERT TESTIMONY (TRANSACTION ID # 75438910) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. CHITRA VENKATASUBRAMANIAN FROM PRESENTING TESTI- MONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTI- CLE 6) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. CHITRA VENKATASUBRAMANIAN FROM PRESENTING TESTI- MONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. WILLIAM HODDICK FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75426091) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. WILLIAM K. HODDICK FROM PRESENT- ING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT VANESSA J. HILL FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT VANESSA J. HILL FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. HOWARD FRIEDMAN FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP

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2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. HOWARD J. FRIEDMAN FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75426091) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT VLADIMIR FILKOV FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT VLADIMIR FILKOV FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75426091) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. TERENCE DELANEY FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75426091) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. TERENCE DELANEY FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75426091) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-10	ORDER RE: PLAINTIFF'S EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING FUNDS FOR NECESSARY MEDICAL TESTING	View	
2025-01-08	EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING FUNDS FOR NECESSARY MEDICAL TESTING (TRANSACTION ID # 75396108) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-08	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF EX PARTE AP- PPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING DEFENSE TO PROVIDE IMME- DIATE FUNDS FOR NECESSARY MEDICAL TESTING (TRANSACTION ID # 75396108) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-08	REMARK: HEARING HELD RE: EX PARTE APPLICATION FOR OST. COURT DETERMINES THAT THE EX PARTE APPLICATION WAS NOT PROPERLY SERVED. APPLICATION IS TO BE NOTICED AND SERVED ON OPPOSING COUNSEL FOR EX PARTE HEARING ON 1/9/25. ALBERTO REYNA, COUNSEL FOR DEFENDANT(S) IS PRESENT. FRANCISCO DYLAN ROSAROI, PRO SE PLAINTIFF IS PRESENT.		
2025-01-07	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING DEFENSE TO PROVIDE IMMEDIATE FUNDS FOR NECESSARY MEDICAL TESTING FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-07	EX PARTE APPLICATION FOR ORDER TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING FUNDS FOR NECESSARY MEDICAL TESTING FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-03	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF EX PARTE APPLICATION TO SHORTEN TIME ON HEARING FOR MOTION TO AMEND COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-03	EX PARTE APPLICATION FOR ORDER TO SHORTEN TIME FOR HEARING ON MOTION TO AMEND COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP

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2025-01-03	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING DEFENSE TO PROVIDE IMMEDIATE FUNDS FOR NECESSARY MEDICAL TESTING FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-03	EX PARTE APPLICATION FOR ORDER TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING FUNDS FOR NECESSARY MEDICAL TESTING FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2024-12-20	REMOVED FROM SETTLEMENT CONFERENCE CALENDAR SET FOR DEC-19-2024 - HELD AND NOT SETTLED (3.5)		
2024-12-16	REMARK: AS TO THE DEC-16-2024 PLAINTIFF'S EX PARTE APPLICATION FOR LEAVE TO FILE AMENDED COMPLAINT, THE COURT DENIES THE APPLICATION WITHOUT PREJUDICE TO FILE A REGULARLY NOTICED MOTION. JUDGE: RICHARD B. ULMER JR.; CLERK: V. DA FONSECA; NOT REPORTED. (302/RBU)		
2024-12-13	NOTICE OF EX PARTE APPLICATION FOR LEAVE TO FILE AMENDED COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2024-12-13	EX PARTE APPLICATION FOR LEAVE TO FILE AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTORITIES FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2024-12-13	ORDER GRANTING WAIVER OF COURT FEES AND COSTS PURSUANT TO G.C. 68634 (E), CRC 3.52 AS TO PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2024-12-13	REQUEST PENDING TO WAIVE COURT FEES AND COSTS PURSUANT TO G.C. 68633, CRC 3.51, 8.26, AND 8.818 (CONFIDENTIAL) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN		
2024-12-10	EX PARTE APPLICATION FOR ORDER TO ADDRESS MALFEASANCE AND MISFEASANCE OF FORMER COUNSEL AND TO GRANT LEAVE TO FILE AMENDED COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	\$60.00
2024-12-09	NOTICE OF SETTLEMENT CONFERENCE; SETTLEMENT CONFERENCE SET FOR DEC-19-2024 AT 8:30 AM WITH SETTLEMENT CONFERENCE OFFICER: DAVID COMMINS	View	
2024-09-17	MASTER JURY TRIAL CALENDAR SET FOR SEP-23-2024 CONTINUED TO MASTER CALENDAR JURY ON JAN-27-2025 AT 9:30 AM IN DEPT. 206 PER EX PARTE ORDER FILED 09/17/24. ALL FURTHER REQUESTS TO CONTINUE THE TRIAL DATE MUST BE BY NOTICED MOTION. THIS SHALL BE THE FINAL CONTINUANCE ABSENT EXCEPTIONAL CAUSE. (206)		
2024-09-17	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S, INDIVIDUALLY AND DBA SONOMA LIQUORS, EX PARTE REQUEST FOR AN ORDER TO CONTINUE THE TRIAL DATE	View	
2024-09-16	STIPULATION FOR ORDER TO CONTINUE TRIAL DATE (TRANSACTION ID # 74336890) FILED BY ABDELHALIM, SUBHI	View	
2024-09-13	DECLARATION OF ALBERTO REYNA IN SUPPORT OF ORDER GRANTING TRIAL CONTINUANCE PER COURT'S DIRECTIVE (TRANSACTION ID # 74324886) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2024-09-06	PROOF OF SERVICE BY MAIL OF EXPARTE APPLICATION; [PROPOSED] ORDER (TRANSACTION ID # 74257098) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2024-09-05	NOTICE OF EX PARTE APPLICATION; EX PARTE APPLICATION AN ORDER TO CONTINUE THE TRIAL DATE OR IN THE ALTERNATIVE, AN ORDER SHORTENING TIME TO HEAR DEFENDANT'S MOTION TO CONTINUE THE TRIAL DATE; MEMORANDUM; DECLARATION OF ALBERTO REYNA (TRANSACTION ID # 74247530) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	\$60.00
2024-09-04	POS RE WITNESS LIST # W-003 BY SERVING KEVIN FLORES FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2024-09-04	POS RE WITNESS LIST # W-002 BY SERVING KEVIN FLORES FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2024-09-04	POS RE WITNESS LIST #W-001 BY SERVING KEVIN FLORES FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

Date	Proceedings	Document	Fee
2024-08-26	NOTICE OF ENTRY OF SUBSTITUTION OF ATTORNEYS (TRANSACTION ID # 74155817) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2024-08-23	SUBSTITUTION OF ATTORNEY, (TRANSACTION ID # 74138108): PRO PER SUBSTITUTED FOR DOLAN, CHRISTOPHER B. AS ATTORNEY FOR ROSARIO, FRANCISCUS DYLAN	View	
2024-02-22	FEE PAID FOR VOIDED CHECK \$60 IN REGARDING TO THE MOTION TO CONTINUE TRIAL FILED BY DEFENDANT ABDELHALIM, SUBHI		\$60.00
2024-02-16	FEE PAID FOR MOTION TO CONTINUE TRIAL FILED BY DEFENDANT ABDELHALIM, SUBHI		\$60.00*
2024-02-06	MASTER JURY TRIAL CALENDAR SET FOR APR-29-2024 CONTINUED TO MASTER CALENDAR JURY ON SEP-23-2024 AT 9:30 AM IN DEPT. 206. (206)		
2024-02-06	MASTER MOTION CALENDAR ON FEB-06-2024 IN 206, DEFENDANT SUBHI ABDELHALIM'S MOTION FOR AN ORDER TO CONTINUE TRIAL DATE PURSUANT TO JOINT STIPULATION WAS HEARD. APPEARANCES VIA COURTCALL BY ALISON BAIRD, ESQ. FOR PLAINTIFF FRANCISCUS DYLAN ROSARIO; ALBERTO REYNA, ESQ. FOR DEFENDANT SUBHI ABDELHALIM. THE COURT DID NOT RECEIVE COURTESY COPIES OF DEFENDANT'S MOVING PAPERS PER LOCAL RULE 2.7(B) AND REQUIRED DEFENDANT'S COUNSEL TO PAY A \$60 MOTION FILING FEE BY 2/16/24 IN LIEU OF FILING A NEW MOTION. THE \$60 FEE MAY BE PAID VIA E-FILE. THE COURT GRANTED THE MOTION. THE TRIAL DATE OF 04/29/24 WILL BE CONTINUED TO 09/23/24 IN DEPT. 206 AT 9:30 AM PER STIPULATION. NO FURTHER CONTINUANCES OF THE TRIAL DATE. DISCOVERY TO TRACK THE NEW TRIAL DATE. MOVING PARTY TO PREPARE AND SUBMIT A PROPOSED FORM OF ORDER, APPROVED AS TO FORM. JUDGE: ANNE-CHRISTINE MASSULLO; MATTER NOT REPORTED (206)		
2024-01-11	DECLARATION OF ALBERTO REYNA IN SUPPORT OF DEFENDANT SUBHI ABDELHALIM'S MOTION TO CONTINUE TRIAL DATE (TRANSACTION ID # 7179613) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2024-01-11	NOTICE OF MOTION AND MOTION FOR AN ORDER TO CONTINUE TRIAL DATE PURSUANT TO JOINT STIPULATION (TRANSACTION ID # 71796139) FILED BY DEFENDANT ABDELHALIM, SUBHI HEARING SET FOR FEB-06-2024 AT 09:30 AM IN DEPT 206	View	\$60.00
2023-09-28	NOTICE OF ENTRY OF ORDER/NOTICE OF RULING FILED (TRANSACTION ID # 70984990) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2023-09-21	MASTER JURY TRIAL CALENDAR SET FOR JAN-22-2024 CONTINUED TO MASTER CALENDAR JURY ON APR-29-2024 AT 9:30 AM IN DEPT. 206 PER EX PARTE ORDER FILED 09/21/23. ALL FURTHER REQUESTS FOR CONTINUANCE MUST BE BROUGHT BY NOTICED MOTION. (206)		
2023-09-21	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION TO CONTINUE TRIAL DATE	View	
2023-09-20	DECLARATION OF ALBERTO REYNA IN SUPPORT OF EX PARTE APPLICATION TO CONTINUE TRIAL DATE (TRANSACTION ID # 210048499) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2023-09-20	EX PARTE APPLICATION FOR ORDER TO CONTINUE TRIAL DATE PURSUANT TO JOINT STIPULATION, OR IN THE ALTERNATIVE, AN ORDER SHORTENING TIME TO HEAR DEFENDANTS MOTION TO CONTINUE TRIAL DATE (TRANSACTION ID # 210048499) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	\$60.00
2023-05-04	SUBSTITUTION OF ATTORNEY, (TRANSACTION ID # 69953800): NAVARATNASINGHAM, PRIYA D. SUBSTITUTED FOR CHAMBERS, MICHAEL RAY AS ATTORNEY FOR ABDELHALIM, SUBHI	View	
2023-04-19	ASSOCIATION OF ATTORNEYS, (TRANSACTION ID # 69857484): PHILLIPS, ROBERT KIRK ADDED AS ATTORNEY FOR ABDELHALIM, SUBHI	View	
2023-03-23	MASTER JURY TRIAL CALENDAR SET FOR MAY-15-2023 CONTINUED TO MASTER CALENDAR JURY ON JAN-22-2024 AT 9:30 AM IN DEPT. 206 PER EX PARTE ORDER FILED 03/23/23. (206)		
2023-03-23	ORDER CONTINUING THE TRIAL DATE	View	

Date	Proceedings	Document	Fee
2023-03-22	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 69609484) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2023-03-22	DECLARATION OF ALEXANDRA COTRONEO IN SUPPORT OF STIPULATED EX PARTE APPLICATION FOR AN ORDER CONTINUING THE TRIAL DATE; (TRANSACTION ID # 69609484) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2023-03-22	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF EX PARTE APPLICATION FOR AN ORDER CONTINUING THE TRIAL DATE; (TRANSACTION ID # 69609484) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2023-03-22	STIPULATED EX PARTE APPLICATION FOR AN ORDER CONTINUING THE TRIAL DATE (TRANSACTION ID # 69609484) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	\$60.00
2022-10-07	NOTICE OF CHANGE OF ADDRESS (TRANSACTION ID # 100178509) FILED BY ATTORNEY CHAMBERS, MICHAEL RAY	View	
2022-05-24	MEDICAL REIMBURSEMENT LIEN SAN FRANCISCO HEALTH CODE SEC 124 (TRANSACTION ID # 67656318) FILED BY CLAIMANT CITY AND COUNTY OF SAN FRANCISCO (ZSFGH), A MUNICIPAL CORPORATION	View	EXEMPT
2022-04-20	NOTICE OF TIME AND PLACE OF TRIAL, JURY TRIAL SET FOR MAY-15-2023 AT 9:30 AM IN DEPT. 206.	View	
2022-04-20	OBJECTION HEARING HELD ON APR-20-2022. JUDGE SAMUEL K. FENG; CLERK J.LEE NOT REPORTED (610)		
2022-04-13	PLAINTIFFS NOTICE OF OBJECTION TO TRIAL DATE (TRANSACTION ID # 100161277) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2022-04-13	DEFENDANTS TRIAL OBJECTION (TRANSACTION ID # 100161247) FILED BY DEFENDANT ABDELHALIM, SUBHI HEARING SET FOR APR-20-2022 AT 10:30 AM IN DEPT 610	View	
2022-04-08	NOTICE OF TIME AND PLACE OF TRIAL, JURY TRIAL SET FOR DEC-19-2022 AT 9:30 AM IN DEPT. 206. CASE MANAGEMENT CONFERENCE ON APR-20-2022 IS OFF CALENDAR. NOTICE SENT BY COURT.	View	
2022-04-07	CASE MANAGEMENT STATEMENT (TRANSACTION ID # 100160729) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN JURY DEMANDED, ESTIMATED TIME FOR TRIAL: 7.0 DAYS	View	
2021-12-29	REMOVED FROM ARBITRATION. CASE MANAGEMENT CONFERENCE SET FOR APR-20-2022 AT 10:30 AM IN DEPARTMENT 610. ARBITRATION DATE OF FEBRUARY 28, 2022 IS VACATED. NOTICE SENT BY COURT.	View	
2021-12-29	OBJECTION HEARING HELD ON DEC-29-2021. JUDGE SAMUEL K. FENG; CLERK JULIE RUMSEY. NOT REPORTED (610)		
2021-12-20	NOTICE OF OBJECTION TO ORDER TO ARBITRATION (TRANSACTION ID # 100150215) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR DEC-29-2021 AT 10:30 AM IN DEPT 610	View	
2021-12-16	ASSIGNED TO ARBITRATION FOR FEB-28-2022. THE DEC-29-2021 CASE MANAGEMENT CONFERENCE IS OFF CALENDAR. NOTICE SENT BY COURT.	View	
2021-12-15	JURY FEES (TRANSACTION ID # 100149869) DEPOSITED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN		\$150.00
2021-11-11	REFUND FROM THE ELIMINATION OF LOCAL SURCHARGES (GC 70625) OF \$15.00		
2021-09-16	CASE MANAGEMENT STATEMENT (TRANSACTION ID # 100141850) FILED BY DEFENDANT ABDELHALIM, SUBHI JURY DEMANDED, ESTIMATED TIME FOR TRIAL: 5.0 DAYS	View	
2021-09-14	JURY FEES (TRANSACTION ID # 100141588) DEPOSITED BY DEFENDANT ABDELHALIM, SUBHI		\$150.00
2021-09-14	ANSWER TO COMPLAINT (TRANSACTION ID # 100141588) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	\$435.00

Date	Proceedings	Document	Fee
2021-08-24	SUMMONS ISSUED (TRANSACTION ID # 66801024) TO PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2021-07-27	NOTICE TO PLAINTIFF	View	
2021-07-27	CIVIL CASE COVER SHEET (TRANSACTION ID # 66801024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2021-07-27	PERSONAL INJURY/PROPERTY DAMAGE - VEHICLE RELATED, COMPLAINT (TRANSACTION ID # 66801024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN AS TO DEFENDANT ABDELHALIM, SUBHI INDIVIDUALLY, AND DBA SONOMA LIQUOR DOES 1 TO 20 NO SUMMONS ISSUED, JUDICIAL COUNCIL CIVIL CASE COVER SHEET NOT FILED CASE MANAGEMENT CONFERENCE SCHEDULED FOR DEC-29-2021 PROOF OF SERVICE DUE ON SEP-27-2021 CASE MANAGEMENT STATEMENT DUE ON DEC-06-2021	View	\$450.00

Showing 1 to 350 of 350 entries

[Previous](#)

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[Next](#)

EXHIBIT C

ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER: NAME: Priya D. Navaratnasingham [SBN 252686] Alberto Reyna [SBN 347323] FIRM NAME: PHILLIPS, SPALLAS & ANGSTADT LLP STREET ADDRESS: 560 Mission Street, Suite 1010 CITY: San Francisco STATE: CA ZIP CODE: 94105 TELEPHONE NO.: 415-278-9400 FAX NO.: EMAIL ADDRESS: alreyna@psalaw.net pnavaratnasingham@psalaw.net ATTORNEY FOR (name): Defendant SUBHI ABDELHALIM SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Francisco STREET ADDRESS: 400 McAllister St. MAILING ADDRESS: 400 McAllister St. CITY AND ZIP CODE: San Francisco, CA 94102 BRANCH NAME: Civil	FOR COURT USE ONLY ELECTRONICALLY FILED <i>Superior Court of California, County of San Francisco</i> 04/29/2025 Clerk of the Court BY: MADONNA CARANTO Deputy Clerk
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM	
NOTICE OF ENTRY OF JUDGMENT OR ORDER (Check one): ☒ UNLIMITED CASE ☐ LIMITED CASE (Amount demanded exceeded \$35,000) (Amount demanded was \$35,000 or less)	CASE NUMBER: CGC-21-594102

TO ALL PARTIES :

1. A judgment, decree, or order was entered in this action on (date): April 25, 2025
2. A copy of the judgment, decree, or order is attached to this notice.

Date: April 29, 2025

Alberto Reyna, Esq.

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

 (SIGNATURE)

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO
 DEFENDANT/RESPONDENT: SUBHI ABDELHALIM

CASE NUMBER:
 CGC-21-594102

**PROOF OF SERVICE BY FIRST-CLASS MAIL
 NOTICE OF ENTRY OF JUDGMENT OR ORDER**

(NOTE: You cannot serve the Notice of Entry of Judgment or Order if you are a party in the action. The person who served the notice must complete this proof of service.)

1. I am at least 18 years old and **not a party to this action**. I am a resident of or employed in the county where the mailing took place, and my residence or business address is (*specify*):

2. I served a copy of the *Notice of Entry of Judgment or Order* by enclosing it in a sealed envelope with postage fully prepaid and (*check one*):

- a. ☐ deposited the sealed envelope with the United States Postal Service.
 b. ☐ placed the sealed envelope for collection and processing for mailing, following this business's usual practices, with which I am readily familiar. On the same day correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service.

3. The *Notice of Entry of Judgment or Order* was mailed:

- a. on (*date*):
 b. from (*city and state*):

4. The envelope was addressed and mailed as follows:

a. Name of person served:

Street address:

City:

State and zip code:

c. Name of person served:

Street address:

City:

State and zip code:

b. Name of person served:

Street address:

City:

State and zip code:

d. Name of person served:

Street address:

City:

State and zip code:

☐ Names and addresses of additional persons served are attached. (*You may use form POS-030(P).*)

5. Number of pages attached:

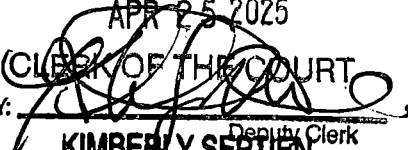
I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

 (TYPE OR PRINT NAME OF DECLARANT)

_____
 (SIGNATURE OF DECLARANT)

FILED
Superior Court of California
County of San Francisco

APR 25 2025
(CLERK OF THE COURT)
BY: 
KIMBERLY SEPTIEN Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQUOR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

HONORABLE GARRETT L. WONG
[DEPARTMENT 504]

~~[PROPOSED]~~ JUDGMENT

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

On July 27, 2021, Franciscus Dylan Rosario brought suit against Subhi Abdelhalim, individually, and dba Sonoma Liquor, in the above-entitled action arising out of an alleged automobile versus electric scooter accident which occurred on February 4, 2021.

This action came on regularly for jury trial on January 27, 2025, in Department 504 of the San Francisco County Superior Court, the Honorable Garrett L. Wong Judge presiding; the Plaintiff Franciscus Dylan Rosario appearing *in propria persona*; and Defendant Subhi Abdelhalim appearing by attorneys Priya Navaratnasingham and Alberto Reyna.

On April 15, 2025, a jury of 12 persons was regularly impaneled and sworn. Witnesses were sworn and testified. After hearing the evidence and the parties' arguments, the jury was duly instructed

1 by the Court and the cause was submitted to the jury with directions to return a verdict solely on the
2 issues of liability and causation.

3 During trial Defendant Subhi Abdelhalim denied fault for the subject accident.

4 On April 23, 2025, the jury returned its verdict as follows:

5 (1) Was Subhi Abdelhalim negligent?

6 Yes X No

7 The presiding juror signed and dated the verdict form. A true and correct copy of the Verdict
8 form was filed by the Court on April 23, 2025.

9 **NOW, THEREFORE, IT IS HEREBY ORDERED ADJUDGED, AND DECREED:**

10 1. Judgment is entered in favor of Defendant Subhi Abdelhalim individually and dba
11 Sonoma Liquor against Plaintiff Franciscus Dylan Rosario.

12 2. Costs shall be awarded to Defendant Subhi Abdelhalim individually and dba Sonoma
13 Liquor after post-trial motions for fees and costs have been filed by Defendant and heard by this Court.
14

15
16 Dated: APRIL 25, 2025

17 
18 HONORABLE GARRETT L. WONG
19 JUDGE OF THE SUPERIOR COURT
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PROOF OF SERVICE

Franciscus Rosario vs. Subhi Abdelhalim, et al.
San Francisco County Superior Court Case No. CGC-21-594102

I, the undersigned, declare:

I am employed in the County of San Francisco, State of California. I am over the age of 18 and am not a party to the within action. My business address is PHILLIPS, SPALLAS & ANGSTADT LLP, 560 Mission Street, Suite 1010, San Francisco, CA 94105.

On **April 29, 2025**, I served the foregoing document(s) described as:

1. NOTICE OF ENTRY OF JUDGMENT OR ORDER

on all other parties and/ or their attorney(s) of record to this action as follows:

☐	BY MAIL SERVICE: by placing such envelopes for collection and to be mailed on this date following ordinary business practices.
☐	By FACSIMILE: By faxing a copy of the above-referenced document(s) to the addressee at the number set forth beneath their above-listed address. At the completion of the transmission, a Transmission Report was generated, confirming transmission and receipt by the addressee(s).
☒	By E-MAIL: based on a court order or an agreement of the parties to accept service by e-mail or electronic transmission, I caused the document to be sent to the persons at the e-mail addresses listed below. I did not receive, within a reasonable time after the transmission, an electronic message or other indication that the transmission was unsuccessful.
☐	By PERSONAL DELIVERY: By personally delivering a true copy thereof to the person(s) and at the address(es) set forth below.
☐	By OVERNIGHT DELIVERY (FedEx): At the address(es) listed herein below by placing a true copy thereof enclosed in a sealed envelope with a label (billed to our account) affixed to the envelope. I am readily familiar with my office business practice for collection and processing of correspondence for FedEx and the within correspondence will be deposited with FedEx on this date in the ordinary course of business.

Franciscus Dylan Rosario
7624 Melody Dr.
Rohnert Park, CA 94928
E: soltrinox@gmail.com
E: victoriarosario4621@gmail.com
E: karim@lakunacollective.com
E: iamevankeegan@gmail.com
(Plaintiff In Pro Per)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on **April 29, 2025** at Los Angeles, California.



Rachael McGregor

1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631802***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 22, 2026, I served the following document: **DECLARATION OF TYLER J.
7 O'CONNELL IN SUPPORT OF MOTION TO STRIKE PLEADING**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12
13 Addressed as follows:

14 **PLAINTIFF, IN PRO PER**

15 Franciscus Dylan Rosario
16 7624 Melody Drive
17 Rohnert Park, CA 94928
18 soltrinox@gmail.com

19
20 I declare under penalty of perjury under the laws of the State of California that the foregoing
21 is true and correct. Executed on Sacramento, California on April 22, 2026.

22
23
24 **Monique Schubert**
25 Monique Schubert